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№ 23

COLLECTION

SELLERS

Selling an Inherited Property

Estate sales —
sell with peace of mind
and at the right price.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION SELLERS · GUIDE NO. 23

Selling an inherited property

Estate — selling an inherited property with peace of mind

Selling an inherited property combines emotions and legal procedures. Between the settlement of the inheritance, decisions involving several heirs and tax aspects, it is better to move forward methodically and surround yourself well.

This guide outlines the main stages: the role of the liquidator, the checks before selling, the tax issues to be aware of, and the management of decisions between heirs.

Informative content, not legal or tax advice: hire a notary and, if necessary, an accountant. Each chapter ends with a lined “My Notes” page.

Selling an inherited property combines law, taxation, logistics and emotions. This guide clarifies who can sell and when, how to prepare and price the property, the tax issues, the decision to have multiple heirs and the delicate step of emptying the house.

Objective: conduct the sale calmly, within the rules, without conflict or emotion losing value.

CHAPTER

The role of the liquidator and the prerequisites

> *Know who can sell and when.*

In an estate, it is generally the liquidator (formerly “executor”) who administers the property and carries out the sale, according to the will and the law. Certain steps must precede the sale (settlement of the estate, publication of documents in the register).

- Confirm who the liquidator is and their powers.
- Check the property title and registration in the Land Register.
- Understand what the will provides for the property.

In an estate, it is generally the liquidator who has the power to sell, once certain steps have been completed (acceptance of the charge, inventory, sometimes authorizations). Check who is authorized and what prerequisites are required BEFORE marketing, to avoid a questionable sale.

> EMILIE'S ADVICE
>
> *Before even thinking about the price, have the notary confirm who has the authority to sell and what steps must be taken. Selling too early or without the right powers creates costly bottlenecks.*

CHAPTER

Prepare the property and set the price

> *Sell a property that is often old or unoccupied.*

An inherited property is sometimes aging, furnished or unoccupied for a while. Prepare it like any sale: empty, clean, repair the essentials, then set a price based on a comparative analysis.

- Have the current market value (ACM) assessed.
- Decide what to gut, repair or sell as is.
- Consider an inspection to know the true condition and avoid disputes.

An inherited property is often old, furnished or unoccupied: cleaning, decluttering and some targeted repairs can significantly improve the price. Price based on comparative analysis, not sentimental value or municipal assessment.

> EMILIE'S ADVICE
>
> *Don't sell off an inherited property out of haste, but don't overinvest in renovations either. Light preparation and fair pricing often yield the best bottom line for heirs.*

CHAPTER

Tax issues to know

> *Anticipate the tax linked to inheritance and sales.*

The taxation of an inherited property can be complex: depending on the case, a capital gain can be calculated from the value at death, the main residence can benefit from an exemption, etc. The rules depend on the specific situation.

Don't assume anything: an accountant or tax specialist, with the notary, will tell you what applies and how to legally minimize the tax.

The taxation of an inheritance can be complex: capital gains, value at death, deadlines. A mistake can be costly. Consult a notary and an accountant to find out the implications before selling - it's an investment that avoids unpleasant tax surprises.

> EMILIE'S ADVICE
>
> *Talk to an accountant BEFORE you sell, not after. The tax decisions of an inheritance need to be planned: once the sale is made, certain options are no longer available.*

CHAPTER

Deciding on multiple heirs

> *Manage collective decisions without conflict.*

When several heirs are involved, the decisions (to sell or not, at what price, which offers to accept) must be made together. Disagreements are frequent and emotionally charged.

- Clarify early on who decides what (often the liquidator, in consultation).
- Rely on facts (ACM, notary's opinion) to depersonalize decisions.
- Communicate regularly to avoid misunderstandings.

When several heirs are involved, decisions (to sell or not, price, calendar) must be taken together. Clarify decision-making and sharing early on; a neutral intermediary (notary, broker) helps to stay on track without emotion blocking the sale.

> EMILIE'S ADVICE
>
> *Base decisions on neutral facts (price analysis, notary's opinion) rather than on emotions. A professional third party often helps heirs reach a peaceful understanding.*

CHAPTER

Emptying the house: practical and emotional aspects

> *Manage content before sale.*

Before selling an inherited property, it is often necessary to **empty** - a stage loaded with emotions as much as logistics.

- **Sort** : keep, give, sell, throw away.
- Provide **time** and, if possible, divide the task among heirs.
- Document the objects of **value** (succession).
- Consider a **estate sale** or specialized services.

A decluttered and clean house presents better and sells more easily.

Emptying the house is a step loaded with emotion as well as logistics: sort (keep, donate, sell, throw away), document valuable objects and, if necessary, get help. Don't rush sorting, but don't let the sale drag on for months either.

> EMILIE'S ADVICE
>
> *Don't rush the sorting out of emotion, but don't let it delay the sale for months either. Set a realistic deadline and, if necessary, get help.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Confirm the liquidator and the powers of sale with the notary.
2. Have the market value assessed (ACM).

Within 30 days

1. Consult an accountant on tax impacts.
2. Prepare the property and structure decisions between heirs.

Then

1. Put on sale with support adapted to the estate.

First steps

1. Confirm who the liquidator is and what prerequisites are required.
2. Consult notary/accountant on taxation before selling.

REFERENCES

Resources & glossary

- Liquidator: person who administers the estate and carries out the sale.
- Land register: public register of real estate rights.
- ACM: comparative market analysis to set the current value.
- Capital gain: possible tax depending on the value at death and the use of the property.
- Principal residence exemption: tax relief possible depending on the situation.
- Liquidator: person authorized to administer and sell the assets of the estate.
- Capital gain: taxable profit realized on the sale, according to the value at death.
- Joint inheritance: property held jointly by the heirs.
- Comparative analysis: objective basis for setting the price.
- Estate sale: liquidation of contents before marketing.

GO FURTHER

Quiz - test yourself

1. In an inheritance, the sale is generally conducted by:

A) Any heir

B) The liquidator

C) The buyer

D) The municipality

2. Before selling, you must first:

A) Set the price only

B) Confirm sales powers and legal steps

C) Move

D) Nothing

3. The price is fixed:

A) Random

B) From a comparative analysis

C) On the municipal assessment

D) On the purchase price of the deceased

4. For taxation, you must consult an accountant:

A) After the sale

B) Before the sale

C) Never

D) Only in the event of a dispute

5. A primary residence can sometimes benefit from:

A) No rules

B) An exemption on capital gains

C) A double tax

D) You're welcome

6. With multiple heirs, decisions must:

A) Stand alone

B) Take it together, on facts

C) Be imposed

D) Be avoided

7. To depersonalize decisions, we rely on:

A) Emotions

B) The ACM and the notary's opinion

C) Chance

D) Rumors

8. Over-renovating an inherited property is:

A) Always profitable

B) Often useless; light preparation + fair price

C) Mandatory

D) Prohibited

Answers

1. B - The liquidator administers and sells (chap. 1).

2. B - The notary confirms who can sell (chap. 1).

3. B - The ACM gives the current value (chap. 2).

4. B - Tax decisions need to be planned (chap. 3).

5. B - Depending on the situation (chap. 3).

6. B - Consultation and neutral facts (chap. 4).

7. B - Neutral facts help understanding (chap. 4).

8. B - We aim for the best net (chap. 2).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

Emilie Cauvier

RESIDENTIAL & COMMERCIAL
REAL ESTATE BROKER

(514) 774-9818

emilie@equipecauvier.com

guidesimmoquebec.com